Micron Clay Megafab (White Pine Commerce Park, Clay, Onondaga County, NY) - Sourced Factual Record

Micron Clay Megafab (White Pine Commerce Park, Clay, Onondaga County, NY) - Sourced Factual Record Compiled September 2026. Revised October 2026. Purpose: factual backbone for an opinion column on how the Micron deal was negotiated. Confidence flags: index = read via web-index search results/page fetches (not live-verified). All sources below are index unless noted. All URLs copied verbatim from tool output.

Summary

Announced Oct 4, 2022, Micron's up-to-$100-billion, four-fab semiconductor campus at White Pine Commerce Park in Clay, NY, was secured with a layered incentive package: up to $5.5B in NY State Green CHIPS Excelsior tax credits (20 years), up to $6.165B in federal CHIPS Act direct funding (finalized Dec 10, 2024), a 49-year OCIDA PILOT (Micron pays $84.5M over 49 years; assessed tax savings of about $283.9M), 140 MW of discounted NYPA ReCharge NY power plus 404 MW market-procured power, and hundreds of millions in public road/water/sewer spending. Key terms were negotiated in a September 2022 "Term Sheet" (Micron, ESD, Onondaga County, OCIDA), setting the basic architecture of the deal before the public announcement. The county stonewalled a FOIL request for the draft environmental impact statement (DEIS) in 2025, drawing a public rebuke from the Syracuse Post-Standard editorial board, which called the timetable "designed to limit public participation." As of October 2026, no community-enforceable benefits agreement exists between Micron and an independent community coalition. Related instruments do exist - the state-company Community Investment Framework MOU (Micron >=$250M, state $100M, rest from other partners, over 20 years; first grants ($43.5M) announced March 2026), Green CHIPS performance conditions, a Project Labor Agreement, and the Town of Clay host agreement - but the equity-oriented hiring and contracting provisions are framed as goals or "good faith efforts," not commitments a community party can enforce. Labor advocates (Urban Jobs Task Force, CWA) have explicitly said enforceable hiring/benefits commitments are missing. Construction broke ground Jan 16, 2026; first chips now expected ~2030 (2-3 years later than first promised); residents' group Neighbors for a Better Micron filed two lawsuits in 2026 (environmental review challenge, Jan 2026; air/water permit challenge, July 31, 2026). Data centers are now arriving in the region under the same IDA playbook - Town of Clay passed a one-year data-center moratorium in June 2026; a statewide data-center moratorium bill was in play the same month.

1. THE INCENTIVE STACK

The incentive package layers state tax credits, federal CHIPS funding, a long PILOT, discounted power, and public infrastructure spending. State figures below are per the executed term sheet and Green CHIPS program documents.

Component	Terms
NY Green CHIPS Excelsior tax credits	Up to $5.5B over 20 years, in two phases. Performance-based: the term sheet provides credits only if Micron meets the job and investment requirements. Tied to about 9,000 promised jobs and the $100B build. Works out to up to about $611,000 per promised job - credits that subsidize a capital-intensive fab build, not jobs alone.
Federal CHIPS Act direct funding	Up to $6.165B. Preliminary memorandum of terms signed April 2024; award finalized December 10, 2024. Supports Micron's ~$100B New York plus ~$25B Idaho plans.

Component	Terms
OCIDA 49-year PILOT	Micron pays about $84.5M over 49 years, versus about $368.4M under the conventional property-tax schedule: a tax savings of about $283.9M. (syracuse.com, Oct 23, 2025)
Power	140 MW of discounted NYPA ReCharge NY hydropower plus 404 MW of market-procured power.

Public infrastructure: four distinct buckets

Bucket	What the record shows
Roads	About $200M in state Route 31 roadway commitments around the site (term sheet). NYSDOT's later estimates run higher ($350M-plus, plus bridges).
Municipal sewer	A $549.5M Oak Orchard treatment plant upgrade, financed with county-issued bonds approved December 2025. County water officials estimate household sewer bills could rise about $115 over five years.
Industrial wastewater	A roughly $1B-plus treatment plant (county estimate; consultants put it at $1.4-2.6B). County officials state that Micron and commercial users in the new industrial sewer district will pay the construction and operating costs through user agreements, via the Onondaga County Water Redevelopment Corporation. The user agreement is still being negotiated.
Water supply	The Lake Ontario expansion is estimated at $550-625M. Micron agreed to about $30M a year in water payments, below the water authority's estimated $34M a year in debt service. Final cost allocation is still being negotiated.

Aggregate figure (use with care): Capital & Main (Feb 2026) put total public subsidies at "as much as $25 billion"; the Syracuse Post-Standard editorial board (spring 2025) said the project "depends on $20 billion in taxpayer subsidies"; the Empire Center (Oct 2022) estimated state+local subsidies then disclosed at "north of $6 billion, or at least $667,000 per job" (at 9,000 jobs); Reinvent Albany (Apr 2026) calculated $736,000 per job ($6.4B ESD subsidy). Disagreement flagged: figures differ because authors include different subsidy layers (state credits only vs. + federal grants vs. + refundable AMIC credits vs. + local abatements + infrastructure). The column should name which stack it is using.

Sources: - Governor's office announcement, Oct 4, 2022 - https://www.governor.ny.gov/news/hochul-schumer-mcmahon-announce-micron-coming-onondaga-county-micron-will-invest-unprecedented - NIST/Commerce award announcement, Dec 10, 2024 - https://www.nist.gov/news-events/news/2024/12/department-commerce- awards-chips-incentives-micron-idaho-and-new-york - OCIDA vote details (syracuse.com/CNYCentral via archynewsy), Nov 19, 2024 - https://www.archynewsy.com/micron-land-transfer-tax-breaks-ida-vote- details/ - OCIDA financial statements FY2025 - https://clayny.news/document/675/original - NYPA allocations (~Mar 2023) - https://www.renewableenergyworld.com/energy-business/energy-finance/ nypa-approves-hydropower-allocations-to-amazon-micron-others/ - Empire Center, Oct 2022 - https://www.empirecenter.org/publications/a-fab-ulous- deal-for-new-york-state/ - Reinvent Albany data-center subsidy table, Apr 2026 - https://reinventalbany.org/2026/04/ny-taxpayers-spend-77m-for-one-jp-morgan-data-center-job-by-far-largest-subsidy-per-job-in-history/ - Capital & Main / Fast Company, Feb 2026 - https://www.fastcompany.com/91495639/microns-100-billion-new-york- semiconductor-manufacturing-project-is-facing-local-pushback - Oak Orchard $549M (WSYR, Dec 30, 2025) - https://wsyr.iheart.com/content/2025-12-30-onondaga-co-approves-549m- sewer-expansion/ - Industrial wastewater plant (Water Tech Online, Feb 2026) -

https://www.watertechonline.com/wastewater/news/55359396/onondaga- county-building-treatment-plant-for-micron-technology - NYSDOT road estimates (syracuse.com, June 2025; forum summary with article quotes) -

https://www.aaroads.com/forum/index.php?

PHPSESSID=86m9fpg0c1qriulqdi35ces9b3&topic=1487.msg2991263%3Btopic seen - TrendForce (Jan 16, 2026, summarizing syracuse.com) -

https://www.trendforce.com/news/2026/01/16/news-u-s-commerce-secretary-lutnick-reportedly-to-attend-microns-100b-clay-fab-groundbreaking/

2. APPROVAL TIMELINE AND PROCESS

- 2020-2022 (pre-announcement): Onondaga County assembled the 1,200-acre White Pine Commerce Park and completed a generic environmental impact study; County Executive Ryan McMahon began courting site selectors. The county held meetings with Gov. Hochul and Sen. Schumer while courting the deal - "the deals hinged on state and federal funding."

McMahon could not publicly reveal Micron's interest.

(syracuse.com/Post-Standard profile, ~Oct 2023; hosted PDF)

- August 2022: Hochul signs Green CHIPS legislation - the state incentive vehicle created for the deal. (Renewable Energy World, Mar 2023)

- September 2022: Micron, ESD, Onondaga County, and OCIDA sign the "Key Terms and Conditions for Development of the Micron Green Manufacturing Memory Chip Fab Campus in Clay, New York"

(Term Sheet) - committing to 9,000+ jobs, federal prevailing wage for construction workers, the $500M community investment fund, and sustainability terms. This happened before any public announcement. (Cited in Micron DEIS Appendix A-D, ongoved.com)

- October 4, 2022: Public announcement - Hochul, Schumer, McMahon, CEO Sanjay Mehrotra. A syracuse.com report (Oct 4, 2022)

noted a bipartisan team had "worked for almost two years trying to lure Micron." Original plan: site prep in 2023, construction 2024, production "in the latter half of the decade" (Micron press release, Oct 2022).

- Nov 7, 2022: Town hall meeting (Clay) - McMahon/Micron gave additional details: 9,000 jobs at average pay of $108,000; ~5,000 construction jobs/year average; 40,000-50,000 supply-chain jobs.

(bsk.com town-hall summary)

- 2023: SEQRA EAF Addendum (Sept 2023); SEQRA Final Scope of Work (Dec 14, 2023).

- March 2024: U.S. Army Corps of Engineers begins federal Environmental Impact Statement process (Notice of Intent); Micron proposes filling ~226 acres of federally regulated wetlands. (The Register, Mar 4, 2024)

- April 25, 2024: CHIPS preliminary memorandum of terms ($6.14B).

Dec 10, 2024: final $6.165B award.

- Nov 19, 2024: OCIDA approves 820-acre land transfer ($30M) and 49- year PILOT.

- 2025 (spring): Onondaga County stonewalls FOIL request for the draft EIS - told reporter Glenn Coin (Post-Standard) he petitioned the wrong agency, it was too voluminous, then blew past FOIL deadlines, promising delivery in July after the planned June public release.

County claimed "intra/interagency communication" exemption, contradicting the Court of Appeals and the Committee on Open Government. Editorial board: "The county's tight timetable appears to be designed to limit public participation... The public deserves to be heard about a project that depends on $20 billion in taxpayer subsidies." (syracuse.com Editorial Board, spring 2025)

- Reinvent Albany (May 2025) also cited: "Syracuse-area Onondaga County refuses to release a report from Micron on the planned chip fab's impact on the local environment and traffic."

- 2025 (summer): DEIS comment-period fight - at release of the draft EIS (~20,000 pages with appendices), officials held to the 45-day federal minimum for public comment; a coalition of labor, environmental, and social-justice groups (SustainCNY, Urban Jobs Task Force, Citizen Action, CNY Solidarity, Neighbors of the Onondaga Nation, IUE-CWA, Jobs to Move America) held a press conference urging 120 days, calling 45 days "grossly inadequate" for a document of that scale and warning of "massive pollution from forever chemicals like PFAS." (openpr.com) The public comment period closed August 11, 2025. (NOPL)

- June 2025: syracuse.com reports NYSDOT takes first step on road revamps ($350M estimate).

- Nov 2025: Draft EIS released (~20,000 pages); Final EIS (Nov 2025)

confirms delay: Fab 1 construction Q2 2026 -> operational Q3 2030;

Fab 2 -> ops late 2033; full buildout construction done 2041, full production 2045. (constructionreviewonline, Nov 15, 2025)

- Oct 16, 2025: NY PSC approves 2-mile 345-kV underground transmission line (Clay substation -> campus); Hochul: "moving quickly ahead with all due speed and deliberation." (Reuters; ENR)

- Dec 2025: State environmental permits approved; county legislature approves $549M Oak Orchard sewer expansion. (ConstructConnect;

WSYR)

- Jan 14, 2026: Clay Planning Board unanimously approves Micron site plan - two days before groundbreaking. Jan 16, 2026:

groundbreaking ceremony (Mehrotra, Commerce Secretary Lutnick, Sen. Schumer). Tree clearing completed by Mar 31, 2026 (Indiana bat nesting deadline). (WSYR; trendforce) Note: one WSYR item says the ceremony was Jan 7; the Jan 16 date is corroborated by the pre-event WSYR preview, trendforce, and Micron's announcement - Jan 16 is the supported date.

- Jan 2026: Neighbors for a Better Micron files lawsuit challenging the environmental review (Micron moves to dismiss; oral arguments scheduled Aug 25, 2026). July 31, 2026: second lawsuit (Albany Supreme Court) seeks to void the DEC air permit and Oak Orchard water permit over PFAS/"forever chemical" wastewater discharges to the Oneida River and GHG emissions; DEC had found the project conflicts with NY climate targets but approved on national-security grounds. (TechSpot, Aug 2026, citing Times Union; lohud, Aug 7, 2026)

Sources: - Term Sheet items - syracuse.com McMahon profile PDF (img1.wsimg.com blob, ~Oct 2023); DEIS Appendix A-D - https://ongoved.com/wp-content/uploads/2025/06/Micron-Draft-EIS- Appendices-A-D.pdf - Town hall summary, Nov 7, 2022 - https://www.bsk.com/uploads/11-07-22-Micron-and-Onondaga-County-Executive-Provide-Additional-Information-Regarding-Microns-Clay-Mega- Fabs-at-Town-Hall-Meeting-Semiconductor-IM.pdf - Army Corps EIS notice (The Register, Mar 4, 2024) - https://www.theregister.com/2024/03/04/micron_fab_environmental_scrutin y/ - Editorial board "Release it now" (spring 2025) -

img1.wsimg.com PDF - Lawsuit coverage (lohud, Aug 7, 2026) -

https://www.lohud.com/story/news/ny-news/2026/08/07/lawsuit-claims- microns-100b-project-poses-threat-to-ny-environment/91202884007/ - TechSpot (Aug 2026) - https://www.techspot.com/news/113349-lawsuit- claims-micron-100-billion-new-york-chip.html - Groundbreaking (WSYR, Jan 16, 2026) - https://wsyr.iheart.com/content/2026-01-16-groundbreaking- ceremony-for-microns-100b-project-in-clay/

3. COMMUNITY BENEFITS - WHAT WAS EXTRACTED

Bottom line: there is no formal community benefits agreement (CBA)

with the community. Labor advocates say so explicitly. What exists instead is a government-company framework:

- $500M Green CHIPS Community Investment Fund (over 20 years):

Micron contributes "at least" $250M, NYS $100M, remaining $150M "raised from local, statewide and national partners" - i.e., $150M was not committed at signing. Four spending buckets: workforce development, education, community investments, housing. Governed by an "Executed Community Investment Framework MOU"

between ESD and Micron (not a CBA with residents), guided by a Community Engagement Committee and a "Community Priorities Document" informed by 12,700+ regional voices. (ESD,

https://esd.ny.gov/micron-community-investment-commitments;

governor.ny.gov guidelines announcement, Dec 2024)

- First grants announced ~March 27, 2026: Micron awarded nearly $35M; state $8.5M - total $43.5M - including $30M toward the $150M Housing CNY Fund and $5.55M for six programs (housing, workforce, childcare, transportation, education). (governor.ny.gov;

Insider Monkey, Apr 8, 2026)

- Binding vs. aspirational: the MOU is a state-company document; no public recourse mechanism for residents if targets are missed.

Syracuse letter-writer (July 7, 2025): the DEIS is "light on measurable enforcement strategies or binding commitments." Urban Jobs Task Force's Dick Kornbluth (July 2026): "The whole point of a community benefits agreement is it actually creates accountability. Anything short of that does not" - labor advocates were still pressing Micron for hiring goals in 2026. Micron's workforce VP said hiring will take "a broad, New York state approach," not CNY-prioritized. (lohud/USA Today Network, July 22, 2026) Reviewer Dick Kornbluth (Oct 2026)

adds that the Term Sheet's ESD "requirement" for Micron to establish hiring goals for disadvantaged and minority workers and businesses was answered with a Micron "good faith effort" commitment - the enforceability gap a CBA would close, and his reason for backing the CNY United Coalition's CBA push.

- Labor: Construction covered by project labor agreements and federal prevailing wage (Sept 2022 Term Sheet; PLAs confirmed as part of the $6.1B CHIPS deal, Bloomberg Law, Apr 2024); Micron agreed to labor-peace talks/neutrality discussions with the CWA under the CHIPS award and to registered apprenticeships. UA Local 81 (plumbers/pipefitters/welders) expects to double from 1,400 members via the Micron contract - up to 4,000 trades workers at peak construction, ~500 permanent jobs. (pressconnects, July 22, 2026) But CWA (Dec 2024) said the Commerce award was made "without enforceable labor and environmental standards or public reporting requirements" and that Micron was "falling short" of the Central New York Good Jobs & Equitable Access Platform.

(speedmatters.org/CWA, Dec 11, 2024)

- Environment (aspirational): 100% renewable energy, LEED Gold, GHG targets and reporting; water conservation; compensatory wetland mitigation for 200+ acres filled; new wetlands to offset losses.

- Binding gaps: the state wastewater permit for the Oak Orchard discharge (SPDES No. NY0030317, effective May 2026) requires PFAS monitoring. Critics and pending litigation argue it sets no numeric discharge limits for many PFAS compounds, citing a July 2026 DEC letter stating the department is "not required to establish enforceable effluent limitations for PFOA or PFOS in this permit" (ForeverChemicals NY, documenting the permit record). DEC found the project conflicts with state climate targets (see Sec. 2). Reviewer-flagged (Dick Kornbluth, Oct 2026 - he recommends confirming with SustainCNY technical staff): until the separate industrial wastewater plant is completed (county officials state Micron and commercial users will pay through the Onondaga County Water Redevelopment Corporation; the user agreement is still being negotiated), Micron's wastewater would be processed by the existing county Oak Orchard plant, which has no PFAS-removal capability; and, to his knowledge, neither OCIDA nor DEC has committed to baseline monitoring of waterways for contaminants or to regular post-operation discharge monitoring.

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- Water/energy scale: up to 48 million gallons/day at full buildout (2043), up from early ~20M gal/day estimates (syracuse.com, Apr 2025, via OCWA); OCWA (~36M gal/day today for 350,000 customers)

plans to double capacity to 72M gal/day. First fab: ~6M gal/day wastewater (county water agency docs, Jan 2025). 140 MW discounted NYPA power + 404 MW market power.

- Traffic: mitigation is public money - state $200M pledged (2022);

NYSDOT now estimates $350M + $25M bridges; $68M new I-81 interchange in Cicero; diverging-diamond at I-81/Route 31; new Route 481 interchange; four-lane access road. No Micron repayment disclosed.

- Housing/workforce: $150M Housing CNY Fund ($30M Micron so far);

$15M Micron Cleanroom Simulation Lab at Onondaga Community College opened Oct 1, 2025 ($5M each: Micron, county, state SUNY).

Sources: - ESD community commitments - https://esd.ny.gov/micron- community-investment-commitments - First grants, March 2026 - https://www.governor.ny.gov/news/governor-hochul-announces-over-43- million-community-investment-funding-central-new-york-part ; https://www.insidermonkey.com/blog/micron-technology-mu-announces-a- huge-community-investment-in-central-new-york-1733356/ - CWA good-jobs critique, Dec 11, 2024 - https://speedmatters.org/news/cwa-calls-micron-adopt-good-jobs-platform-amid-semiconductor-companys-61-billion - Bloomberg Law PLA piece, Apr 2024 - https://news.bloomberglaw.com/daily-labor-report/micron-to-broker-labor- peace-agreement-under-6-1-billion-deal - lohud workforce piece, July 22, 2026 - https://www.lohud.com/story/news/2026/07/22/microns-100b-project-promises-9k-jobs-how-its-already-impacting-ny/91012879007/ - pressconnects trades piece, July 22, 2026 - https://www.pressconnects.com/story/news/2026/07/22/how-chips-act-is-bringing-thousands-of-high-paying-trades-jobs-to-upstate-ny/91004546007/ - Newshouse PFAS/chemical disclosure, May 2026 - https://thenewshouse.com/off-campus/how-microns-chip-plants-could-affect- new-york-residents/ - OCC cleanroom lab, Oct 2025 - http://business.dailytimesleader.com/dailytimesleader/article/marketminute-2025-10-1-central-new-york-unveils-15m-cleanroom-simulator-a-new-era- for-semiconductor-workforce-development

4. CRITICISM AND OPPOSITION

- Fiscal watchdogs.

- Empire Center (Oct 2022, "A 'fab'-ulous deal for New York State?"):

$5.5B state credits + 49-year PILOT + county grants + $200M roads = "north of $6 billion, or at least $667,000 per job"; noted the REMI benefit study was cited but not released; filed a FOIL request for it.

- Reinvent Albany: Nov 18, 2022 - "Just weeks after NY announced plans to give up to $5.5 billion in subsidies to Micron... the company announced plans to reduce spending by 20% (Times Union)"; asked whether taxpayers should fund "huge speculative expansions by global corporations in highly cyclical industries"; cited labor economist Tim Bartik's finding that Excelsior-type credits affect job decisions only 2-25% of the time (Feb 2025 testimony); Apr 2026 - Micron fab at $736,000 per taxpayer dollar per job ($6.4B ESD subsidy). Also flagged IDA incentive misalignment: NY's 107 IDAs collected $290M in deal fees 2018-2022 (80% of their operating revenue) - i.e., IDAs profit from giving away tax dollars. OCIDA's own 2025 financials show $1.33M in agency fees from Micron in 2025 alone.

- Good-government/secrecy.

- Term Sheet signed before public announcement (Sec. 2).

- Post-Standard editorial board (spring 2025): county's FOIL stonewalling on the DEIS; "tight timetable appears to be designed to limit public participation."

- NSCSD school-board presentation to OCIDA (May 27, 2026): PILOT payments reduce the tax levy under the tax cap (district "receives NO FUNDI[ng]"); DOT used eminent domain, taking properties off tax rolls; district seeks special legislation to exempt Micron PILOTs from the tax-cap calculation and 100% building aid for a decade.

(onondaga.gov PDF)

- North Syracuse district separately (govtech, Sept 2026): Micron will pay the schools ~$1.3M/year - "pennies on the dollar" - and the district must ask Micron for a $10M voluntary donation toward an $18M STEM hub.

- Environmental / EJ.

- Neighbors for a Better Micron (Clay residents): two 2026 lawsuits (Sec. 2); member Gracia Roulan: "we don't want this just bulldozed into our area" (Capital & Main/Fast Company, Feb 2026); 200+ acres of wetlands filled; 48M gal/day water; PFAS wastewater; thousands of tons of GHG; chemical list withheld from the public.

- CHIPS Communities United (coalition of unions + community groups): Judith Barish - "Environmental review is one of the only levers that the public has to learn what the impact [of a project]

might be"; advocates want subsidies conditioned on job delivery.

(Capital & Main, Feb 2026)

- Labor. CWA: award lacked enforceable labor/environmental standards and public reporting; Micron falling short of the CNY Good Jobs & Equitable Access Platform (Dec 2024). Urban Jobs Task Force:

no accountable CBA; pressing for hiring goals (July 2026). On the other side: building-trades unions are enthusiastic (PLA, 4,000 peak trades jobs) - a split between trades (construction jobs) and community-labor advocates (permanent-job equity).

- National press: Capital & Main/Fast Company (Feb 2026): "may receive as much as $25 billion in public

subsidies... Community members want enforcement measures to ensure the company follows through on promised environmental safeguards and its pledge to create 9,000 jobs." Bloomberg Law (Apr 2024) on labor conditions in the CHIPS deal. Reuters (Oct 2025) on the power-line approval. USA Today Network/lohud (2026) on workforce and power-secrecy angles.

- Times Union: Nov 2022 reporting (cited by Reinvent Albany) that Micron would cut spending 20% weeks after the subsidy announcement; Aug 2026 - Micron told the Times Union it doesn't comment on active litigation but the project underwent "extensive environmental review." (via TechSpot, Aug 2026)

- Syracuse.com/Post-Standard: the McMahon profile (~Oct 2023), the "release the DEIS" editorial (spring 2025), June 2025 roads reporting, July 2025 letters ("no measurable enforcement strategies or binding commitments"; "40% of the first phase... subsidized by taxpayers"), Jan 2026 site-plan approval coverage, and ongoing scrutiny of sewer/water costs and the "$549M sewage project likely to hike your rate."

Sources: as listed above plus: - Reinvent Albany Nov 2022 -

http://reinventalbany.org/2022/11/subsidy-sheet-micron-reduces-spending- weeks-after-announcing-ny-plans/ - Reinvent Albany IDA report citation (Apr 2024) via Mar 2025 item - http://reinventalbany.org/2025/03/genesee-ida-pocketing-50-million-plus-from-perverse-3-9-million-per-job-subsidy- deal/ - NSCSD presentation -

https://onondaga.gov/legislature/wp-content/uploads/sites/201/2026/06/ NSCSD_Presentation-OCIDA-May-27-2026-1.pdf - North Syracuse STEM hub (govtech, Sept 2026) - https://www.govtech.com/education/k-12/north- syracuse-n-y-plans-to-add-stem-hub-to-high-school - Your Letters (syracuse.com, July 7, 2025) - img1.wsimg.com PDF

5. CURRENT STATUS (as of October 2026)

- Construction: Groundbreaking Jan 16, 2026; tree clearing by Mar 31, 2026 (Indiana bat); first concrete poured July 2026, "more than a quarter ahead of schedule" (Micron, via Futurum/equityswarm, July 2026). By July 2026: 300+ acres cleared, 500,000 cubic yards of cement poured, $661M spent since Nov 2025 ($232M construction since Jan 2026), $2.3B in contracts committed (per court filings - lohud, July 22, 2026). ~$675M directed to NY-based contractors/suppliers (Micron, July 2026). EPC: Bechtel (selected June 2026); design: Jacobs;

preconstruction: Gilbane. County Executive McMahon (Sept 15, 2026 budget address): "1st phase of Micron's construction has begun";

3,000-4,000 workers on site next year.

- Timeline shifts: First fab operation moved from original ~2028 plan -> Q3 2030 (Nov 2025 Final EIS); Fab 2 -> late 2033; four-fab construction complete 2041; full production 2045. McMahon blamed labor shortages and longer construction cycles (Environment+Energy Leader, Sept 2026). Flag: one outlet (BigGo Finance, July 9, 2026) reported DRAM production beginning 2029 - conflicts with the FEIS- based Q3 2030; the FEIS figure is more authoritative.

- Investment scale-ups: June 2025 - Micron/Trump Commerce announced expanded $200B US commitment (up from ~$150B manufacturing + $50B R&D framing), incl. up to two additional NY fabs, +$275M CHIPS PMT for Virginia, 90,000 jobs; the Trump administration said it "streamlined the Biden Administration's onerous policy requirements" for the awards - i.e., Micron's federal conditions were lightened in renegotiation (iconnect007/einnews press release, June 2025; SRN/Reuters, June 4, 2025 on Lutnick renegotiating "overly generous" grants). July 9, 2026 - Micron raised the US commitment again to >$250B through 2035;

$500M strategic financing + 10-year wafer supply deal with GlobalWafers. The $6.165B CHIPS award itself

appears to have survived.

- Jobs to date vs. promised: Promise = 9,000 direct Micron jobs at full buildout (~2045), ~50,000 total NY jobs. No public figure found for permanent Micron employees hired to date (Oct 2026) - Micron and officials cite construction spend and contractor dollars instead. Could not verify.

- Controversies (2026): (1) Neighbors for a Better Micron's two lawsuits (Jan 2026 environmental-review challenge; July 31, 2026 air/water permit challenge over PFAS discharges to the Oneida River and GHG) - both pending; (2) $549M Oak Orchard sewer expansion approved Dec 2025 with rate-hike concerns (~$115/household over 5 years); (3) industrial wastewater plant cost ($1B vs. $1.4-$2.6B estimates) with Micron's user agreement still unfinalized - the county borrows, Micron pays later; (4) single-source claim that Micron is shifting ~$1.2B in CHIPS funds from NY to Idaho (constructionreviewonline, Nov 2025) - unverified, but Idaho's second fab may come online before NY's first (panabee, June 2025).

- Micron's current public line: project is ahead of schedule on construction; >$250B US commitment; 9,000 NY jobs + 40,000+ ecosystem jobs; 40% of DRAM made in the US; "committed to being a great member of the community and a responsible environmental steward" (spokesperson Anna Newby, Feb 2026); environmental review was "thorough"; declines comment on active litigation.

Sources: - Construction progress (lohud, July 22, 2026) -

https://www.lohud.com/story/news/2026/07/22/microns-100b-project- promises-9k-jobs-how-its-already-impacting-ny/91012879007/ - $250B announcement (Futurum Group, July 2026) -

https://futurumgroup.com/insights/microns-250b-us-investment-finds-its- edge-on-koreas-memory-juggernaut/ - Timeline shift (Environment+Energy Leader, Sept 2026) - https://environmentenergyleader.com/stories/micron-delay-shows-why-lenders-underwrite-the-schedule,138817 - Trump renegotiation (SRN/Reuters, June 4, 2025) - https://srnnews.com/trump-administration-renegotiating-overly-generous-biden-chips-act-grants/ - $200B announcement + streamlined requirements (iconnect007, June 2025)

- https://iconnect007.com/article/145758/president-trump-secures-200b-investment-from-micron-technology-for-memory-chip-manufacturing-in- the-united-states/145755/ein - McMahon Sept 15, 2026 budget address (CitizenPortal AI summary) - https://citizenportal.ai/articles/9989480/new-york/onondaga-county/mcmahon-highlights-micron-construction-as-engine- for-regional-growth

- October 2026: the state opened additional Green CHIPS Community Investment Fund rounds. By July 2026 Micron reported more than $50 million committed to Central New York community priorities (Micron press release, July 9, 2026).

The most citable facts on how the community gave away its leverage

1. $5.5B state tax credits / 9,000 jobs = up to ~$611,000 per promised job. The credits are performance-based: the term sheet provides them only if Micron meets the job and investment requirements, and they subsidize a capital-intensive $100B fab build, not jobs alone. Reinvent Albany's math puts the ESD subsidy at $736,000 per job ($6.4B) (Apr 2026; Empire Center's 2022 version: >=$667,000/job). Sources: governor.ny.gov, Oct 4, 2022; reinventalbany.org, Apr 2026; executed term sheet.

2. Term Sheet signed September 2022 - before the October 4, 2022 public announcement - by Micron, ESD, Onondaga County, and OCIDA, negotiating the basic architecture of the deal: jobs, wages, community-fund, and sustainability terms. The term sheet itself states its provisions take effect only through

later definitive agreements. (DEIS Appendix A-D, ongoved.com)

3. 49-year PILOT: Micron pays $84.5M over 49 years; tax savings about $283.9M - and the host school district says PILOT payments must reduce the tax levy under the tax cap rather than fund schools ("receives NO FUNDI[ng]"). (OCIDA vote, Nov 19, 2024; NSCSD presentation to OCIDA, May 27, 2026)

4. The county stonewalled FOIL release of the draft EIS in 2025; the Post-Standard editorial board said the "tight timetable appears to be designed to limit public participation" on "a project that depends on $20 billion in taxpayer subsidies." (syracuse.com editorial, spring 2025)

5. As of October 2026, no community-enforceable benefits agreement exists between Micron and an independent community coalition. Related instruments do exist - the state-company Community Investment Framework MOU, Green CHIPS performance conditions, a Project Labor Agreement, and the Town of Clay host agreement - but the equity-oriented hiring and contracting provisions are framed as goals or "good faith efforts," not commitments a community party can enforce. Urban Jobs Task Force's Dick Kornbluth (July 2026): "The whole point of a community benefits agreement is it actually creates accountability. Anything short of that does not." The $500M "community fund" is a state- company MOU: Micron >=$250M, NYS $100M, $150M uncommitted at signing, spread over 20 years; first grants ($43.5M) only in March 2026. (lohud, July 22, 2026; esd.ny.gov)

6. Public infrastructure around the project breaks into distinct buckets. Roads: about $200M in state Route 31 commitments around the site (term sheet). Municipal sewer: a $549.5M Oak Orchard treatment plant upgrade, financed with county-issued bonds approved December 2025; county water officials estimate household sewer bills could rise about $115 over five years (CNY Signal). Industrial wastewater: a roughly $1B-plus treatment plant (county estimate; consultants $1.4-2.6B); county officials state Micron and commercial users in the new industrial sewer district will pay construction and operating costs through user agreements via the Onondaga County Water Redevelopment Corporation, with the user agreement still being negotiated. Water supply: the Lake Ontario expansion is estimated at $550-625M; Micron agreed to about $30M a year in water payments against an estimated $34M a year in debt service, with final cost allocation still being negotiated. (syracuse.com; CNY Signal; Water Tech Online; NY Rural Water Association)

7. CWA: the $6.165B CHIPS award was made "without enforceable labor and environmental standards or public reporting requirements" (Dec 2024) - and the Trump administration later "streamlined" (lightened) the award's policy requirements while keeping the money (June 2025). (speedmatters.org/CWA; iconnect007)

8. Weeks after the $5.5B subsidy announcement, Micron cut spending 20% (Nov 2022) - Reinvent Albany: "taxpayers should not be paying for huge speculative expansions by global corporations in highly cyclical industries." (reinventalbany.org, Nov 18, 2022, citing Times Union)

9. The playbook is already being reused: a Lysander data center (Onondaga County) is in early planning; Town of Clay passed a one- year data-center moratorium (June 2026) while a statewide moratorium bill was in play; NYPA won't disclose the value of power discounts it gives data centers (lohud, Sept 16, 2026); and the IDA-fee model persists - Genesee County's IDA stands to pocket $47- 79M in fees on a data-center deal costing $3.9M per job (Reinvent Albany, Mar 2025). (blackridgeresearch.com; WSTM via briefs; lohud; reinventalbany.org)

WHAT WAS ENFORCEABLE, AND WHAT WAS ASPIRATIONAL

The deal's community-facing provisions fall on a spectrum. The left column is what the documents say; the right column is what that means for enforceability.

Provision	Character
$5.5B Excelsior (Green CHIPS) incentives	Performance-based. Provided only if Micron meets the job and investment requirements in the incentive schedule (term sheet).
About 9,000 direct Micron jobs	Tied to incentives. Annual employment goals in the job schedules; credits follow the jobs.
Sustainability requirements	In the incentive framework. Sustainability commitments sit inside the Green CHIPS eligibility structure.
$250M Micron community contribution	Formal company commitment. In the Community Investment Framework MOU.
Diverse contracting: 30% of construction spend, 20% of operating spend	"Good faith efforts." The term sheet's words, not a hard commitment.
Disadvantaged-population hiring targets	"Good faith" recruiting goals. Final targets set with the Community Advisory Committee under the Green CHIPS Community Plan.
Independent community enforcement	None. No community-party CBA as of October 2026; no community signatory with standing to enforce the goals above.

The pattern is the point: the provisions with money attached are enforceable; the provisions with equity attached are aspirational. That is the gap a binding community benefits agreement would close.

ACTION ITEMS: WHAT THE RECORD SUPPORTS DOING NEXT

Data-center items lead, because that is where the leverage still exists. Micron items follow, because construction is underway and the remaining question is what can still be improved.

Action	Deciding body	Specific ask	Timing / vehicle
Apply the lesson to data centers.	Town boards, county legislature	Adopt the model term sheet before the next developer arrives: publish negotiating terms before any incentive discussion.	Before the next proposal; town board or county resolution.
Fix the process for the next project.	State legislature; county legislature	120-day minimum DEIS comment periods for megaprojects; FOIL compliance before approvals; no NDAs on public incentive negotiations.	2027 legislative session; county policy resolution.
Win a binding Community Benefits Agreement.	CNY United Coalition (negotiating with Micron); OCIDA and the county as leverage points	Convert the term sheet's "good faith effort" hiring and contracting language into enforceable commitments on disadvantaged and minority hiring and contracting, with public reporting and community recourse.	Ongoing negotiations.
Lock in environmental monitoring now.	OCIDA and DEC	Baseline waterway contaminant monitoring before operations begin and regular discharge monitoring after, plus independent PFAS testing along the Oneida River to Lake Ontario pathway.	Before fab operations begin.

Action	Deciding body	Specific ask	Timing / vehicle
End the chemical-secrecy shield.	DEC (permit terms); state legislature	Full chemical inventory disclosure to regulators at minimum; numeric discharge limits where the permit now requires only monitoring.	Permit cycle; legislation.

Could not verify / open questions

- Excelsior credit recapture/clawback mechanics: described as "performance-based" but the schedule, job-count tests, and recapture formula are not public in sources found.

- Whether any Town of Clay rezoning was required: the county pre- assembled White Pine Commerce Park; no rezoning fight surfaced in sources. The operative approvals were PILOT, SEQRA/site plan, and state/federal permits.

- The $13M natural-gas pipeline claim (Marcellus Drilling News, Sept 2026, partisan blog): unverified - treat as allegation, not fact.

- $1.2B CHIPS reallocation NY->Idaho (constructionreviewonline, Nov 2025): single lower-authority source; directionally consistent with Idaho fabs coming online first, but unconfirmed.

- "Micron has paid Onondaga County nearly $15M in fees"

(syracuse.com headline snippet): headline-level only; OCIDA financials confirm $1.33M in agency fees from Micron in 2025, but the cumulative $15M figure was not verified.

- Groundbreaking date variant: one WSYR item says Jan 7, 2026;

preponderance (WSYR preview, trendforce, Micron) says Jan 16, 2026.

Used Jan 16.

Sources

All URLs above were copied verbatim from search output (index reads, September 2026). Working notes per topic are in notes/: source-basics.md, source-benefits-labor.md, source-secrecy-current.md, source-power-litigation.md.

Key primary/official sources: governor.ny.gov (Oct 4, 2022; Dec 2024; Mar 2026), nist.gov/Commerce (Dec 10, 2024), esd.ny.gov (community commitments), OCIDA financial statements FY2025 (clayny.news), NSCSD presentation to OCIDA May 27, 2026 (onondaga.gov), Micron DEIS appendices (ongoved.com), DOL statement Dec 2024 (dol.gov).